

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 39
JUDICIAL OFFICER: EDWARD G WEIL
HEARING DATE: 02/19/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 39's email address is: dept39@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 39 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

1. 9:00 AM CASE NUMBER: C22-02168

CASE NAME: PEREZ VS. DAMORE

HEARING ON SUMMARY MOTION JUDGMENT

FILED BY: LATIF, SABEHA

TENTATIVE RULING:

Defendant Sabeha Latif's motion for summary judgment is **granted**.

Plaintiff was walking her dogs in Concord on October 7, 2020, when she was bit by Defendant Damore's dog, suffering injuries. (Comp. ¶¶ 6-7.) Plaintiff sued Damore for strict liability (causes of action one and two). Plaintiff sued Damore and Latif for negligence and premises liability (causes of action three and four). Plaintiff alleges that Defendants were negligent in allowing a dog to roam unrestrained at the time of the incident, failed to provide warnings and that Defendants had actual knowledge of the dangerous nature of the dog. (Comp. ¶¶ 19, 20, 27.)

Defendant Latif filed this motion for summary judgment, arguing that there is no liability under negligence or premises liability because Latif and her son had no knowledge of a dog at the property, let alone knowledge of a dangerous dog.

The elements of negligence are: (1) the existence of a duty of care, (2) breach of that duty of care, (3) proximate or legal causation, and (4) damages. *Vasilenko v. Grace Family Church* (2017) 3 Cal.5th 1077, 1083. "A necessary element of both [premises liability and negligence] causes of action is the existence of a legal duty to the plaintiff." (*Chee v. Amanda Goldt Property Management* (2006) 143 Cal.App.4th 1360, 1369.)

"[I]t is well established that a landlord does not owe a duty of care to protect a third party from his or her tenant's dog unless the landlord has actual knowledge of the dog's dangerous propensities, and the ability to control or prevent the harm. [Citations.] ' "[A] duty of care may not be imposed on a landlord without proof that he knew of the dog and its dangerous propensities. Because the harboring of pets is such an important part of our way of life and because the exclusive possession of rented premises normally is vested in the tenant, ... *actual* knowledge and not mere constructive knowledge is required. For this reason ... a landlord is under no duty to inspect the premises for the purpose of discovering the existence of a tenant's dangerous animal; only when the landlord has actual knowledge of the animal, coupled with the right to have it removed from the premises, does a duty of care arise." ' [Citations.]" (*Chee v. Amanda Goldt Property Management* (2006) 143 Cal.App.4th 1360, 1369-70; accord *Lundy v. Cal. Realty* (1985) 170 Cal.App.3d 813, 821.)

In opposition, Plaintiff argues that there should be duty here based upon a general duty analysis. Plaintiff's argument ignores the line of cases discussing a landlord's duty regarding a tenant's dog. The only dog injury case Plaintiff cites, *Drake v. Dean* (1993) 15 Cal.App.4th 915, is distinguishable as the defendant was the property owner and dog owner. There was no discussion of liability for a landlord.

The Court follows established case law, which holds that a landlord has no duty to protect others from a tenant's dog unless the landlord had actual knowledge of the dog and its dangerous propensities.

Here, Defendant's evidence shows that Defendant Latif rented the property where the bite occurred to Defendant Damore since 2012. (S. Latif dec. ¶4.) The dog that bit Plaintiff was a large white Akhita. (Perez depo. 18:2-3; 20:10-12.) Latif managed the property until 2019 when her son, Umair Latif, started managing the property (S. Latif dec. ¶3-4; U. Latif dec. ¶5.) Until 2019, Defendant Latif would drive by the property once a month and visit the property to address maintenance issues. (S. Latif dec. 4.) Defendants' son began managing the property in 2019 and would drive by the property twice a month and visit the property for maintenance issues. (U. Latif dec. ¶6.) Both Defendant Latif and her son state that they did not know there was a white Akhita dog at the property. (S. Latif dec. ¶6; U. Latif dec. ¶6.) They also state that they did not know that the dog had attacked or bitten anyone before, they did not receive any complaints about the dog and they did not know of the dog's dangerous or vicious propensity. (S. Latif dec. ¶¶ 10-16; U. Latif dec. ¶¶11-16.)

Thus, the evidence shows that Defendant and her son had no knowledge of the dog and further no knowledge that the dog was dangerous. Defendant's evidence is sufficient to meet her burden showing that the negligence and premises liability claims fail because Defendant did not owe a duty here.

Plaintiff "disputed" several of the material facts by stating "Defendant relies solely on its own Self-Serving Declaration and is Insufficient to Establish this Fact for Purposes of Summary Judgment. Unknown to Plaintiff." Such a statement is insufficient to dispute the material fact cited. (*Trujillo v. First American Registry, Inc.* (2007) 157 Cal.App.4th 628, 636 [the court should not reject a declaration as self-serving in a motion for summary judgment] (disapproved on other grounds in *First Student Cases* (2018) 5 Cal.5th 1026, 1026); see also Code of Civil Proc. §437c(e).)

Plaintiff did not provide any evidence in opposition to this motion. And thus, Plaintiff has not shown that there is a triable issue of material fact here.

In opposition, Plaintiff argues that Defendant has not met her burden on the strict liability claims. Plaintiff did not sue Defendant for strict liability and therefore those claims are not part of this motion. "The pleadings play a key role in a summary judgment motion and ""set the boundaries of the issues to be resolved at summary judgment."" [Citation.]" (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 444.)

Therefore, the Court grants Defendant's motion for summary judgment.

2. 9:00 AM CASE NUMBER: C24-00212
CASE NAME: ADAM RIVAS VS. CAM TRUONG
HEARING ON SUMMARY MOTION JUDGMENT TO BE FILED BY DEFENDANT'S CAM TROUNG ETC.
FILED BY: TRUONG, CAM M
TENTATIVE RULING:

The motion for summary judgment or, in the alternative, for summary adjudication, filed by defendant Cam M Truong, is **denied**.

I. Factual Background

Plaintiffs were tenants at 1813 Robin Lane in Concord from approximately February 2019 to September 2023. (SSUMF, Fact. No. 1.) Moving defendant, Cam M Truong, owned the property until April 2023, when it was sold to co-defendants, the Josephs. (SSUMF, Fact. No. 2.) Defendant Truong asserts that she had a good relationship with plaintiffs, that she hired one of the plaintiffs (Garcia) to perform maintenance and repairs, that he successfully resolved issues in the bathroom and kitchen, and that he was compensated for his work. (SSUMF, Fact. Nos. 3-5.) Truong further asserts she demanded plaintiffs clean the bathroom when she was attempting to sell the property, which they did. (SSUMF, Fact. No. 6.)

A Notice of Violation was issued by the City in December of 2022. Truong asserts that issues cited relating to plaintiffs' unit were "very minor," including mold, roaches, and cracked walls. Truong asserts Cynthia Lopez testified she was not responsible for initiating the complaint and did not know about it. Truong also asserts various aspects and interpretations of this notice, including who might have been responsible for the underlying causes, the degree to which the notice related to plaintiffs' unit, and the prompt abatement of the cited issues (by February 2023). (SSUMF, Fact. Nos. 7-11.)

Truong asserts that she sold the property in April 2023, that plaintiffs testified their primary reason for relocating was a need for more space, and that they never complained about roaches or bedbugs after 2021. (SSUMF, Fact. Nos. 12-15.) Truong asserts that plaintiff Cynthia Lopez's deposition testimony "demonstrates that all issues raised during her tenancy were addressed by Cam Truong" and that she never refused to pay Garcia for the work he performed. (SSUMF, Fact. No. 15.)

Plaintiffs filed this case in January 2024, alleging seven causes of action against Truong: (1) Breach of the Warranty of Habitability, (2) Breach of Statutory Warranty of Habitability, (3) Breach of the Covenant of Quiet Enjoyment, (4) Negligence, (5) Private Nuisance, (6) Violation of Tenant Anti-Harassment Ordinance, and (7) Violation Of Business and Professions Code Section 17200.

Truong filed an answer in May of 2024, which generally denied all allegations and asserted affirmative defenses. While the motion purports to be filed on behalf of co-defendant, Long Dac Lai, that defendant was dismissed in May of 2024.

II. Motion and Opposition

The motion, filed in September of 2025, seeks summary judgment as to the entire complaint, and summary adjudication, in the alternative, as to each of the seven causes of action.

The motion is supported by a request for judicial notice and two declarations, one from counsel and one from Truong, who attaches the lease agreement, the City's Notice of Violation, an email confirming abatement of the violations, text messages between Truong and "plaintiffs," and photographs of the cleaned bathroom in May 2022. Counsel's declaration includes excerpts from the depositions of two of the plaintiffs, Cynthia Lopez and Leslie Rivas, as well as excerpts from the deposition of real estate agent, Monjid Aldiyyat. The declaration also attaches a complaint purportedly filed by plaintiffs in 2018 against other landlords.

In opposition to the motion, plaintiffs provide a memorandum of points and authorities and a response to the separate statement. They argue that defendant cannot meet her burden of

establishing that no triable issues of material fact exist, and citing the moving papers themselves, plaintiffs purport to dispute nearly all of the above “undisputed” facts.

III. Evidentiary Matters

In support of the motion, Truong requests judicial notice of plaintiffs’ complaint. The Court notes there are other documents included in the attachment, but with respect to the complaint itself, the request is **granted**.

With the reply, Truong submits both a declaration and a “Reply Separate Statement of Additional Undisputed Material Facts.” The latter provides additional facts defendant apparently believes necessary for her motion. The declaration attaches additional deposition excerpts. New evidence cannot be raised in a reply. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.) The rule is consistent with the basic requirement that a “moving party must carry the initial burden of informing its opponent and the court of the specific basis for its motion.” (*People v. Williams* (1999) 20 Cal.4th 119, 129; see also *San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A.* (2009) 102 Cal.App.4th 308, 316 [where a party files a dispositive motion, it violates the opposing party’s due process rights for the court to consider new arguments and issues in reply].) Accordingly, the Court strikes the reply declaration and statement of facts and has not considered either in the course of this ruling.

IV. Standard

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc., § 437c (c).) A defendant’s burden consists of showing one or more elements of plaintiff’s cause of action cannot be established, or that there is a complete defense to a cause of action. (Code Civ. Proc. §437c(p)(2).) If, and only if, defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or defense. (*Ibid.*) The court may not weigh the evidence in ruling on a motion for summary judgment. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 856.)

A motion for summary adjudication under Code of Civil Procedure § 437c(f)(1) can be granted “if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c(f)(1).) (See also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 251.) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c (f)(2).)

V. Analysis

A. Procedural Concern

The separate statement submitted by defendant repeats the same 15 facts nine times, but does not list them beneath a statement of the issue to be decided. For example, UMF No. 1 is stated on pages 1, 7, 13, 19, 24, 30, 35, 41, and 47 of the separate statement, but for each time UMF No. 1 is repeated beyond page 7, there is no “issue” listed above it. The same is true for other repetitions of the facts. The statement of issues in defendant’s notice is must be “repeated, verbatim, in the separate statement,” per California Rules of Court. (Cal Rules of Court, Rule 3.1350(b).) To the extent this failure to comply would constitute a basis for denial of summary adjudication, the Court has nonetheless proceeded to examine the motion on the merits with respect to each cause of action.

B. Substantive Basis for Denial – Defendant Fails to Meet Initial Burden

The scope of the moving party's initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.) Accordingly, the Court examines each cause of action, as pleaded in the complaint.

1. Breach of the Warranty of Habitability (C/A 1 & 2)

In their first cause of action, plaintiffs allege that defendant breached the warranty of habitability both contractually and pursuant to Civil Code §1941. Specifically, they allege their residence had garbage disposal deficiencies; electrical deficiencies; plumbing deficiencies; lack of hot water; water leaks; water damaged ceilings, floors and walls containing mold and mildew; rodent infestations; insect infestations; pest infestations; security and safety deficiencies; storage deficiencies; and that they suffered loss of use of the premises for various periods of times for the years 2014, 2015, 2016, 2017, 2018 and to the present. (Complaint, ¶¶8-9.)

To establish a cause of action for breach of the warranty of habitability, a tenant must show: (1) a defective condition on the property substantially affected its habitability; (2) that defendant knew or should have known of the defective condition; (3) that plaintiff was harmed; and (4) that defendant's conduct was a substantial factor in causing plaintiff's harm. (CACI 4350.) Defendant argues in her motion that plaintiffs cannot show the second or third elements (uninhabitable condition and notice). She has the initial burden to demonstrate as much. Defendant fails to do so.

Defendant attempts to rely on an absence-of-evidence theory to meet her initial burden. In an attempt to meet this burden (i.e., to show that plaintiffs do not have and cannot obtain evidence regarding notice or uninhabitable conditions), defendant relies on deposition testimony from select plaintiffs concerning select conditions. But the law is clear that a plaintiff's deposition testimony does not serve the same function as a contention interrogatory. (*Rifkind v. Superior Court* (1994) 22 Cal. App. 4th 1255, 1262-64; *Villa v. McFerren* (1995) 35 Cal. App. 4th 733, 748-49.) While a defendant may rely on factual devoid responses to contention interrogatories to meet its initial burden to show an absence of evidence, that is not what defendant does in this motion and a plaintiff is not required to state all contentions in response to deposition questions. The court cannot infer that plaintiffs have no evidence that defendant was on notice, or that uninhabitable conditions existed from the deposition responses, and thus defendant has not met her initial burden.

Because defendant did not meet her initial burden, plaintiffs had no burden to present controverting evidence. Plaintiffs do not provide evidence, but instead highlight the conflicts in the evidence provided by defendant.

In defendant's moving papers, certain allegations in the complaint go completely unaddressed (garbage disposal and electrical deficiencies), while other issues are only partially addressed (mold, roach and rodent infestations). At least one statement asserted by defendant is completely unsupported by the separate statement and underlying evidence. (See Memorandum of Points and Authorities, 8:9-11 [assertion related to "pest" being only a garden spider].)

Finally, some of plaintiffs' allegations appear to be supported by defendant's own evidence showing an issue of fact inappropriate for determination on summary judgment. For example, the notice of violation issued by the City of Concord supports the allegations by plaintiffs that there were habitability issues at some point in time, even if eventually corrected. While the separate statement addresses various evidence, a separate statement should include "ultimate facts." The ultimate facts required for the positions taken by defendant (that plaintiffs cannot show notice or uninhabitable conditions) are simply not included in the separate statement as required. Therefore, the motion

must be denied with respect to breach of the warranty of habitability claims.

2. Breach of the Covenant of Quiet Enjoyment (C/A 3)

In their third cause of action, plaintiffs allege that defendant breached the implied covenant of quiet enjoyment through various acts and omissions, including failing to implement a regular maintenance review and inspection process, failing to repair unsafe, unsanitary and uninhabitable conditions at the premises; and failing to maintain the premises in a habitable condition. (Complaint, ¶¶8-9, 21.)

It has long been the rule that in the absence of language to the contrary, every lease contains an implied covenant of quiet enjoyment. (*Petroleum Collections Inc. v. Swords* (1975) 48 Cal. App. 3d 841, 846.) However, the covenant of quiet enjoyment is not breached until there has been an actual or constructive eviction. (*Id.* at 847.) Under both types of eviction, the tenant eventually vacates the premises. In the case of an interference with the beneficial enjoyment of the premises, the tenant must surrender the premises within a reasonable time after the date of interference, or waive the right to abandon. (*Id.* at 847-848.) What constitutes a “reasonable period of time” is a question of fact to be determined by the trier of fact after considering all of the circumstances. (*Id.* at 848.)

Here, defendant argues that, because she sold the property in or around April 2023, and because plaintiffs vacated in September 2023, she is not liable for any purported breach of the implied covenant. This is not for the Court to decide on summary judgment. Defendant’s second argument that she maintained a positive relationship with plaintiffs also does not rule out the claim, regardless of whether they referred to her as a “nice lady.” Because habitability issues constitute one of the bases on which plaintiffs argue the implied covenant was breached, the above discussion related to the first and second causes of action is relevant to this cause of action as well.

Defendant fails to demonstrate she is entitled to judgment on the first two causes of action and therefore, the motion be denied with respect the third cause of action.

3. Negligence (C/A 4)

Defendant moves for summary adjudication on the negligence cause of action by incorporating her arguments with respect to the first and second causes of action, discussed above. Accordingly, the Court similarly incorporates the discussion related to those causes of action and the motion on this cause of action must be denied.

4. Private Nuisance (C/A 5)

Private nuisance is a “civil wrong based on disturbance of rights in land.” (*Monks v. City of Rancho Palos Verdes* (2008) 167 Cal.App.4th 263, 302.) So long as the interference is substantial and unreasonable, and such as would be offensive or inconvenient to the normal person, virtually any disturbance of the enjoyment of the property may amount to a nuisance. (*Ibid.*, internal citations omitted.)

In order to recover under this theory, plaintiffs must establish that the invasion of their use and enjoyment of the property was “substantial” and “unreasonable.” (*Id.* at 301.) Plaintiffs, in their complaint, incorporate their allegations concerning uninhabitable conditions.

Defendant’s moving papers argue that “the same analysis” applies as that involved in “the other causes of action discussed above.” (Memorandum of Points and Authorities in Support of Motion, 12:5.) Accordingly, as already discussed, defendant fails to rule out the existence of conditions that could create a nuisance and therefore, the motion on this cause of action must be

denied.

5. Violation of Concord Anti-Harassment Ordinance (C/A 6)

Plaintiffs allege that defendant violated the Concord Tenant Anti-Harassment Ordinance. Similar to the analysis with respect to the first and second causes of action, defendant fails to meet her initial burden.

Plaintiffs' claim for harassment in Violation of the Concord Anti-Harassment Ordinance, Municipal Code § 19.50.10, et seq., does not state precisely what evidentiary facts form the basis for this cause of action. Plaintiffs simply allege that "Defendants violated the ordinance." (Complaint, ¶39.) This ultimate fact begs the question of what evidence plaintiffs have to prove this claim at trial. But nothing in the separate statement provided by moving defendant outlines the scope of this claim from plaintiffs' perspective, leaving the Court to guess at what underlying evidence might exist.

In order to meet her initial burden, moving defendant would need contention interrogatories or some other means of eliciting the basis (or lack thereof) for this claim in order to show there are no triable issues of material fact. Defendant fails to meet her initial burden in this respect and therefore, the motion on this cause of action must be denied.

6. Violation Of Business and Professions Code Section 17200 (C/A 7)

An unlawful business practice claim brought pursuant to Civil Code section 17200, et seq prohibits unfair competition defined as any unlawful, unfair, or fraudulent business act or practice. Claims based on this code provision "borrow" violations of other laws and treats them as unlawful practices that are independently actionable under this provision. (See *Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal. 4th 163, 180.) As defendant points out, plaintiffs' claim under this provision arises from their other causes of action. As there is an insufficient showing on those other claims, defendant's motion on this cause of action is denied.

3. 9:00 AM CASE NUMBER: C24-02709
CASE NAME: MARIA SEREDKINA VS. PAVEL YEFENAU
***HEARING ON MOTION IN RE: TO CONSOLIDATE FOR ALL PURPOSES**
FILED BY: YEFENAU, PAVEL
TENTATIVE RULING:

Before the Court is a motion by plaintiff Maria Seredkina to consolidate this action with a related action, Case No. C25-02577, for all purposes. For the reasons set forth, the motion is **granted**.

Background

In this action, Plaintiff Maria Seredkina sued her former spouse Pavel Yefanau for claims arising out of his allegedly accessing plaintiff's "personal and work" electronic devices, including corporate phones and computers provided by her employer, without her consent. (First Am. Compl. ("FAC") generally ¶¶ 6-9.) She alleges that, by Yefanau obtaining access to her personal electronic devices without her consent or permission, defendant discovered plaintiff was involved in a relationship with her co-worker Stuart Maschmeier. (FAC ¶ 8.) Seredkina's operative FAC alleges causes of action for invasion of her constitutional right to privacy and intrusion into private affairs.

Stuart Maschmeier filed his own lawsuit against Yefanau arising out of Yefanau's accessing

Seredkina's electronic devices in a related action also pending in this Court, *Stuart Maschmeier v. Pavel Yefanau and Does 1 through 20, inclusive*, Case No. C25-02577 ("Related Action"). His original complaint was filed on September 11, 2025 and alleged causes of action for violation of Civil Code section 1708.85 (revenge porn), invasion of privacy, and intentional infliction of emotional distress based on Yefanau's accessing material on Seredkina's electronic devices and disseminating the information. (RJN Exh. 2 [Orig. Compl. ¶¶ 8-17.]) Maschmeier has since filed an Amended Complaint, alleging the same three causes of action with similar allegations regarding Yefanau's accessing private information and photos of Maschmeier through Seredkina's electronic devices without her consent.

Defendant Yefanau seeks to consolidate this action and the Related Action for all purposes. The motion and notice of hearing was served on counsel for Maschmeier as well as counsel for Seredkina. Only Seredkina has filed an opposition to the motion. Counsel for the moving party confirms in his reply declaration that Maschmeier is not opposing consolidation. (Christopherson Reply Decl. ¶ 2.)

Legal Standards Applicable to Motion for Consolidation

Code of Civil Procedure section 1048 provides, "When actions involving a common question or law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc. § 1048(a).)

"Consolidation under Code of Civil Procedure section 1048 is permissive, and it is for the trial court to determine whether the consolidation is for all purposes or for trial only. [Citation omitted.]" (*Hamilton v. Asbestos Corp.* (2000) 22 Cal. 4th 1127, 1149.)

The decision whether to consolidate actions is left to the trial court's discretion based on its assessment of various factors, including whether there are common issues of fact or law, and even if there are, whether other factors, such as potential prejudice to one or more parties, delay, confusion or other considerations do not warrant consolidation. (*Todd- Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979 ["Code of Civil Procedure section 1048 grants discretion to the trial courts to consolidate actions involving common questions of law or fact. The trial court's decision will not be disturbed on appeal absent a clear showing of abuse of discretion."].) (*See also Walker v. Walker* (1960) 177 Cal. App. 2d 89, 91 ["Consolidation of cases under Code of Civil Procedure, section 1048, rests within the sound discretion of the trial judge. [Citation omitted.]"].)

Defendant's Request for Judicial Notice

Yefanau asks the Court to take judicial notice of the first amended complaint filed in this action and the complaint filed in the Related Action. (Def. RJN Exhs. 1 and 2.) Plaintiff Seredkina filed a "response" to the request stating it is "unclear" why Yefanau requests judicial notice of the pleadings and that the Court should deny the request. Seredkina quotes *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, in which the Court explains that, "Although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable. (*Id.* at 113 [emphasis added].) (*See also StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 ["When judicial notice is taken of a document, however, the truthfulness and proper interpretation of the document are disputable. [Citation.]"].)

Under Code of Civil Procedure section 1048(a) and the case law, the facts alleged and the claims made in the actions for which consolidation is sought are necessarily relevant to the determination of the motion. *Fremont* does not stand for the proposition that "the Court may not, under Evidence Code section 452 and *Fremont*, take judicial notice of the statements in the Complaint." (Resp. to RJN p. 2, ll. 27-28 [emphasis added].) The Court **grants** the request for judicial notice. The Court takes judicial notice of the fact the complaints and amended complaints were filed in this and the Related Action, and the allegations and claims each party makes in their respective pleadings, but not the truth of the content of the pleadings. (Evid. Code § 452(d).)

Analysis

The Court agrees that both actions arise out of a common set of facts, specifically that (a) Seredkina and Maschmeier became romantically involved, (b) Yefanau allegedly without consent or authority accessed information on Seredkina's electronic devices, including work devices, and (c) through Yefanau's unauthorized access of material on Seredkina's electronic devices, Yefanau (i) obtained and disseminated private information regarding Seredkina (FAC ¶¶ 7, 8, 11-14), and (ii) obtained private information and private photos of Maschmeier (Related Action Am. Compl. ¶¶ 8-11, 13-15). These common factual allegations are the foundation for Seredkina's invasion of privacy and intrusion into private affairs causes of action and Maschmeier's claims for revenge porn, invasion of privacy, and intentional infliction of emotional distress. Both actions involve one common issue of law arising out of these common facts, the claims for invasion of privacy both plaintiffs are asserting.

While Maschmeier's first cause of action for violation of Civil Code section 1708.85 also involves the alleged dissemination of the private photos to others, an additional fact or element not necessarily involved in Seredkina's or Maschmeier's other causes of action, that difference does not preclude consolidation. Similarly, the Court does not find that the lack of evidence that Yefanau's obtaining Seredkina's private information and obtaining Maschmeier's private information and photos occurred on the same dates and times warrants denial of consolidation. The operative complaints allege the same factual scenario, and Seredkina has not explained why the fact some of one party's information was obtained on one particular date and the other party's on a different date makes a difference in considering consolidation.

The standard of the case law and statute are that there are "common" questions of fact, not "identical" questions of fact. It is likely there will be substantial duplication of discovery if the two actions are not consolidated, with inefficiencies for the Court, and excess costs for the parties and third parties subject to discovery, as well as the risk of inconsistent rulings. That each plaintiff also may have suffered some individualized injury does not preclude consolidation. (*Todd-Steinberg, supra*, 48 Cal.App.4th at 979.)

In *Todd-Steinberg, supra*, the Court of Appeal found no abuse of discretion by the trial court consolidating three separate actions by individual plaintiffs for personal injuries they alleged they suffered using the Dalkon Shield. In affirming the trial court's proper exercise of its discretion to consolidate the actions, the Court explained, "The trial court correctly anticipated that a large portion of the trial would be devoted to issues common to the three cases: how PID [pelvic inflammatory disease] occurs, whether it can be caused by the use of Dalkon Shield, and what other factors might cause or contribute to the disease. In short, a large part of the trial was devoted to educating the jury

about the female reproductive system, the Dalkon Shield and PID." (*Todd-Stenberg, supra*, 48 Cal.App.4th at 979.) While there may have been some idiosyncratic facts relevant to each plaintiff's claims, the essential basis for liability – product liability for a dangerous device that caused a particular disease in each plaintiff – were present in each action that was consolidated.

Seredkina also argues if the cases are litigated together there is a risk of prejudice. (Opp. p. 4, ll. 23-24.) The prejudice she identifies is potential delay in discovery. Though she does not elaborate on how and why consolidation will result in discovery delay and may result in a stay of the claims alleged in her action, the concern is apparently that Maschmeier's claims raise the risks of potential criminal liability for Yefanau. Yefanau has asserted that he has a risk of criminal liability based on Seredkina's claims in this action. The Court previously denied Yefanau a general stay of discovery based on fifth amendment issues and based on the pendency of the consolidation motion. (See 6/13/2025 OAH; Order Den. Ex Parte App. 9/25/2025. Seredkina has not demonstrated prejudice by consolidation of the actions, particularly prejudice sufficient to outweigh the benefits of consolidation under the circumstances.

4. 9:00 AM CASE NUMBER: C24-03541
CASE NAME: DANICA AULAUMEA VS. AIRBNB, INC.
***MOTION/PETITION TO COMPEL ARBITRATION (CONTINUED FROM 02.05.26)**
FILED BY:
TENTATIVE RULING:
Off calendar. Matter settled.

5. 9:00 AM CASE NUMBER: C25-00096
CASE NAME: LAFAYETTE LAND COMPANY, LLC VS. MANINDER DHANJU
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL FOR DEFS**
FILED BY:
TENTATIVE RULING:
The motion of counsel Weston Law Group, PC and Stephanie Meyer to withdraw as counsel for defendant Maninder Dhanju is off calendar as moot, based on the substitution of counsel for Dhanju, filed December 9, 2025.

6. 9:00 AM CASE NUMBER: C25-01950
CASE NAME: KENNETH RAI VS. JEFFREY RAI
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RAI, JEFFREY L.
TENTATIVE RULING:

Before the Court is a demurrer by defendant Jeffrey Rai to plaintiff Kenneth Rai's complaint. For the reasons set forth, the general demurrers to the first, second, third, and fourth causes of action are **sustained, with leave to amend.**

Background

Plaintiff Kenneth Rai alleges claims against his son Jeffrey Rai for breach of contract, fraud based on misrepresentation, and common counts for account stated and open book account. (For clarity, the Court in some instances will identify the parties by their first names Kenneth and Jeffrey given their

identical last names.) The disputes relate to a residential property located on Southwind Circle in Richmond (the "Property") and to an alleged agreement Plaintiff characterizes as a "promissory note" reflected in a December 8, 2004 letter attached as Exhibit A to the complaint (the "2004 Letter"). (Compl. ¶¶ 7, 9 and Exh. A.) Plaintiff alleges claims for breach of contract (1st C/A), account stated (3rd C/A) and open book account (4th C/A) for Jeffrey's alleged failure to repay \$400,000 which he alleges is the principal amount of the loan. Plaintiff also alleges a cause of action for fraud related to the Property, title to which was transferred to Jeffrey.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Julian v. Mission Community Hospital* (2017) 11 Cal.App.5th 360, 374.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) (*See also* Code Civ. Proc. § 452.)

In ruling on a demurrer, the Court also considers matters of which the Court can properly take judicial notice. (*Evans, supra*, 38 Cal.4th at 6; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) Though the Court deems the allegations of the complaint to be true, where exhibits are attached to the complaint, the Court also accepts the statements in the exhibits as true and gives them precedence to the extent they contradict the allegations pled in the complaint. (*Moran v. Prime Healthcare Management, Inc.* (2016) 3 Cal.App.5th 1131, 1145-1146; *Mead v. Sanwa Bank California* (1998) 61 Cal. App. 4th 561, 567-568 [stating "If the facts appearing in the attached exhibit contradict those expressly pleaded, those in the exhibit are given precedence same," but holding there was no contradiction in that case].)

To sustain a general demurrer based on the statute of limitations, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is time-barred, not that it might be barred. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232.) Demurrers for uncertainty are disfavored. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135; *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695 [" '[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.' [Citations omitted.]"].)

Requests for Judicial Notice

Defendant requests judicial notice of Plaintiff's complaint and of a grant deed recorded September 18, 2017 from Kenneth T. Rai and Yuki S. Rai, Trustees of the Kenneth T. Rai and Yuki S. Rai Revocable Trust to Jeffrey L. Rai. (Def. RJN Exhs. A and B.) Plaintiff also filed a request for judicial notice of the complaint in support of his opposition. The Court **grants** the requests for judicial notice of the complaint, subject to the applicable limitations on judicial notice. (Evid. Code § 452(d); *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice does not extend to the truth or proper interpretation of a pleading to the extent reasonably disputable]; *Fremont Indemnity Co. v.*

Fremont General Corp. (2007) 148 Cal.App.4th 97, 113-115 [same].)

Judicial notice of the grant deed may be taken under Evidence Code section 452(c). The Court **grants** the request for judicial notice of the grant deed attached as Exhibit B to defendant's request. (*West v. JP Morgan Chase Bank, N.A.* (2013) 214 Cal. App. 4th 780, 802-803 [on demurrer, judicial notice of recorded trustee's deed upon sale and entity named as grantee]; *Linda Vista Village San Diego Homeowners Assn., Inc. v. Tecolote Investors, LLC* (2015) 234 Cal.App.4th 166, 184.) Plaintiff argues that extrinsic evidence cannot be considered in ruling on a demurrer, citing *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. That rule applies to evidence other than matters subject to judicial notice. (*Evans, supra*, 38 Cal.4th at 6 [affirming order sustaining demurrer to complaint based in part on documents subject to judicial notice, stating " '[A] complaint otherwise good on its face is subject to demurrer when facts judicially noticed render it defective.' [Citation.]" [Citations omitted.]"]; *Carloss, supra*, 242 Cal.App.4th at 123.)

Analysis

Defendant makes general demurrers to each cause of action on the grounds that Plaintiff fails to allege facts sufficient to state the causes of action and that the claims are barred by the applicable statute of limitations. Defendant also makes special demurrers to each cause of action for uncertainty.

A. Breach of Contract (1st C/A)

Plaintiff alleges that on or about December 8, 2004, Jeffrey "acknowledged that plaintiff transferred approximately \$400,000 of plaintiff's inheritance from his father" to Jeffrey "in exchange for a written promise by defendant to pay \$2,000 per month to plaintiff. The written promise was memorialized in a letter dated December 8, 2004," a copy of which is attached as Exhibit A to the complaint and which Plaintiff refers to as the "Promissory Note" and the Court will refer to as the "2004 Letter." (Compl. ¶ 9.)

1. Legal Framework of the Cause of Action

The essential elements of a cause of action for breach of contract are "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff. [Citations omitted.]" (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) For any contract to be enforceable, it must be " 'sufficiently definite (and this is a question of law) for the court to ascertain the parties' obligations and to determine whether those obligations have been performed or breached.' [Citation omitted.]" (*Bustamante v. Intuit, Inc.* (2006) 141 Cal.App.4th 199, 209.) The promise "must be definite enough that a court can determine the scope of the duty[,] and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages. [Citations omitted.]" 'Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable.' [Citations omitted.] . . . 'If . . . a supposed "contract" does not provide a basis for determining what obligations the parties have agreed to, and hence does not make possible a determination of whether those agreed obligations have been breached, there is no contract.' [Citation omitted.]" (*Id.*)

Plaintiff characterizes the 2004 Letter as a promissory note, which is a form of contract for a loan,

which requires certain material terms to be enforceable. " 'Typically, a contract involving a loan must include the identity of the lender and borrower, the amount of the loan, and the terms for repayment in order to be sufficiently definite.' [Citations omitted.]" (*Westlands Water Dist. V. All Persons Interested* (2023) 95 Cal.App.5th 98, 127.)

2. Exhibit A Contradicts Some Allegations of the Complaint, and the Terms of the "Loan" and Repayment Are Not Sufficiently Definite to Be Enforced

The 2004 Letter states the letter represents the "personal agreement" among Jeffrey, Kenneth and Yuki Rai, Jeffrey's mother, in which Jeffrey "will pay approximately \$1000 per person (Ken & Yuki) per month to assist your living expenses in your retirement years . . ." (Compl. Exh. A [emphasis added].) The letter continues: "At this time, the annual tax exempt gift amount is \$11000 per person, per year. The total payment I make each year shall not exceed the annual tax exempt limit for individual gifting. The majority of the financial assistance I am able to distribute to you comes from an inheritance from Chao-Nin Rai (Jeff Rai's paternal grandfather and Ken Rai's father) which is approximately \$400,000 US dollars." (Compl. Exh. A [emphasis added].) Further, the letter states that "[f]luctuations on the monthly payments including monthly taxes, yearly taxes, and family needs may occur and shall be communicated by earnest effort. (Compl. Exh. A [emphasis added].)

Plaintiff's allegations characterizing the 2004 Letter are contradicted by the exhibit. Contrary to paragraph 9, the promise in the 2004 Letter is not to pay Kenneth \$2,000 per month, but rather to pay "approximately \$1000" per month to Kenneth and approximately \$1000 per month to Jeffrey's mother to "assist" with their living expenses in retirement expressly refers to potential "fluctuations on the monthly payments" based on taxes and "family needs." The 2004 Letter does not state when the monthly payments start or end, other than presumably on the death of each parent, when the parent's need for financial assistance in retirement would end. The 2004 Letter repeatedly refers to the payments in reference to the "gift" amount allowed as tax exempt and recognizes the monthly payments may fluctuate. There is no date stated on which the monthly amounts were due. It is not clear to the Court that the promise stated in the 2004 Letter is sufficiently definite to be enforced according to its terms in the absence of a definite monthly payment amount ("approximately \$1000" per month per person subject to fluctuations), payment start date, or payment end date.

Even if the 2004 Letter were reasonably susceptible to the interpretation Plaintiff alleges, namely that Kenneth transferred an inheritance from Jeffrey's grandfather to Jeffrey, despite the lack of an acknowledgement that the transfer was "in exchange" for the monthly retirement assistance payments or any reference to the funds being loaned to Jeffrey subject to a duty to repay, the 2004 Letter refers to the "approximately \$400,000" in inheritance funds Jeffrey received. Even if the 2004 Letter could be interpreted as Kenneth making a loan of the inheritance to Jeffrey, it does not provide a definite sum loaned as (a) it explicitly states the amount is an approximate number, and (b) it states the inheritance was to provide "the majority" of the funds Jeffrey had available to provide "financial assistance" to his parents during their retirement, suggesting the monthly payments would not be funded solely from the inheritance. There is no stated obligation in the 2004 Letter for defendant to pay or repay \$400,000 to either parent or any date when such repayment of the "principal" was allegedly due. Since the 2004 Letter provides for a monthly payment of \$1,000 to Plaintiff Kenneth, Plaintiff does not allege facts supporting that he alone is entitled to recover \$400,000 for breach of the 2004 Letter agreement, rather than perhaps half that amount, since he was to receive half the

amount of the monthly payments.

Having attached and incorporated the 2004 Letter as evidence of the alleged Promissory Note agreement and the "loan" terms, the Court cannot accept as true allegations contradicted by the 2004 Letter, absent other allegations addressing and explaining the discrepancies between the terms of the 2004 Letter and the claim made by Plaintiff. Without other allegations, the complaint does not allege facts sufficient to state a claim for breach of an agreement by defendant to repay \$400,000 that was owed to Kenneth based on the 2004 Letter.

For these reasons, the demurrer to the breach of contract cause of action is **sustained, with leave to amend.**

3. Statute of Limitations

As defendant argues, Plaintiff does not allege that Jeffrey made any monthly payments or annual payments under the 2004 Letter, or if payments were made, when the payments ceased. Plaintiff merely alleges that he demanded that defendant "repay the amounts due to plaintiff under the Promissory Note, or otherwise comply with the terms of the same" on July 17, 2024. (Compl. ¶¶ 10, 16.)

The promise in the 2004 Letter is for Jeffrey to make approximate monthly payments of \$1,000 per parent indefinitely without a specific start date and tied to the parents' retirement. Plaintiff alleges as of the date the complaint was filed in 2025, he was 91 years old, so he was roughly 70 when the 2004 Letter was given by Jeffrey. There is an inference from the fact Plaintiff claims \$400,000 is due that no monthly payments were made, or that Jeffrey stopped making monthly payments under the 2004 Letter many years ago. If monthly payments had been made as stated in the 2004 Letter assuming they started in January 2005, that no fluctuations were made to the "approximate" monthly amount or based on "family needs," and that the annual cap on payments remained \$22,000 based on the gift tax exemption also stated in the letter, by June 2024, Jeffrey would have made well over \$400,000 in payments.

Plaintiff acknowledges the statute of limitations on a cause of action for breach of contract accrues when the party with the claim can commence the action which occurs when the last "essential element" of the cause of action occurs. (*Spear v. California State Auto. Assn.* (1992) 2 Cal. 4th 1035, 1040.) In the case of breach of contract, the statute of limitations does not accrue until there has been a breach. (*Id.* at 1042.)

Plaintiff relies on the continuous accrual doctrine to assert the breach of contract claim is timely within the statute of limitations, citing *Esparza v. Safeway* (2019) 36 Cal.App.5th 42, a decision addressing wage and hour claims in violation of the Labor Code brought under the Private Attorney General Act, Labor Code section 2698 *et seq.* The Court explained, "Generally, a statute of limitations begins to run when a cause of action accrues, meaning when the cause of action is complete with all of its elements. [Citation omitted.] Violations of a continuing or recurring obligation may give rise to 'continuous accrual' of causes of action, meaning that 'a cause of action accrues each time a wrongful act occurs, triggering a new limitations period.' [Citation.]' [Citations omitted.]" (*Id.* at 59-60 [quoting *Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1199].)

Aryeh involved a copier lease requiring monthly payments and is more analogous to this case and the

2004 Letter with its provision for monthly payments. The Court further explained in *Aryeh*, "[T]he theory of continuous accrual supports recovery only for damages arising from those breaches falling within the limitations period." (*Aryeh, supra*, 55 Cal.4th at 1199 [emphasis added].) The Court applied the continuous accrual doctrine to improper amounts the plaintiff claimed were included in the plaintiff's monthly payments due under a copier lease. "Canon billed Aryeh on a recurring monthly basis. . . . By its nature, the duty Canon owed—the duty not to impose unfair charges in monthly bills—was a continuing one, susceptible to recurring breaches. Accordingly, each alleged breach must be treated as triggering a new statute of limitations. [Citations omitted.] Aryeh cannot recover alleged excess charges preceding the four-year limitations period, but is not foreclosed from seeking recovery for charges to the extent they fall within that period. Because the complaint alleges excess charges within the four years preceding suit, it is not completely barred by the statute of limitations." (*Id.* at 1200-1201 [emphasis added].)

The statute of limitation on enforcement of an obligation in writing is four years. (Code Civ. Proc. § 337(a).) The 2004 Letter includes a recurring promise to make monthly payments to Plaintiff of approximately \$1,000 and to his wife in that approximate amount for retirement needs for an indefinite duration. Under *Aryeh*, applying the continuous accrual doctrine to the recurring obligation of the monthly payment, Plaintiff can potentially state a claim for breach that is not barred by the statute of limitations for recovery at least for those monthly payments that defendant committed to make to Kenneth during the four years preceding the filing of the lawsuit. The Court cannot conclude that the statute of limitations "clearly and affirmatively" bars any breach of contract claim for any amount arising under the 2004 Letter. (*Committee for Green Foothills, supra*, 48 Cal.4th at 42; *Lee, supra*, 61 Cal.4th at 1232.) The Court does not sustain the demurrer to this cause of action on statute of limitations grounds.

B. Fraud (2nd C/A)

The elements of a cause of action for deceit are " '(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.' [Citation omitted.]" (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) Fraud must be pled with specificity, which requires a plaintiff to plead "facts which show how, when, where, to whom, and by what means the representations were tendered." [Citations and internal quotation marks omitted.]" (*Id.* at 645 [emphasis added].)

The rule of liberal construction of pleadings does not apply to fraud claims. "[A] general pleading of the legal conclusion of fraud is insufficient. Every element of the cause of action must be alleged in full, factually and specifically." [Citation omitted.]" (*Tindell v. Murphy* (2018) 22 Cal. App. 5th 1239, 1249 [emphasis added].) (*See also Lazar, supra*, 12 Cal.4th at 645 (*Id.* ["In California, fraud must be pled specifically; general and conclusory allegations do not suffice."].)

1. Plaintiff's Allegations

The fraud claim is founded on transfer of title to the Property to defendant. The complaint alleges that Plaintiff obtained "full ownership" of the Property in February 2016. (Compl. ¶ 8.) He alleges that on or about November 1, 2024, Plaintiff discovered the Property had been transferred to Jeffrey. (Compl. ¶¶ 11, 20.) He alleges defendant was collecting rental income from the Property since

"approximately August 22, 2014." (Compl. ¶ 11 [emphasis added].)

Plaintiff alleges defendant "made representations to plaintiff that plaintiff would be allowed to retain the Property for plaintiff's entire life, and that defendant [i.e., Jeffrey] would transfer the Property to plaintiff's granddaughter upon plaintiff's death." (Comp. ¶ 11 [emphasis added].) (*See also* Compl. ¶¶ 20, 21.) He alleges again the representations were "false" because the Property had been transferred to Jeffrey, Jeffrey allegedly had been collecting rents from the Property since approximately August 2014, and Jeffrey intended the Property to be used for his own benefit. (Compl. ¶¶ 11, 21.)

2. Fraud Not Pled with Specificity as to All Elements

The fraud claim is not pled with specificity. Plaintiff does not allege (a) when Jeffrey allegedly made the false statements, (b) to whom the false statements were made, though presumably to Plaintiff but that is not alleged, and (c) how, in what manner, and by what means the false statements were allegedly made, such as in person, over the telephone, by email, or in some other way, or in some form of writing. These facts are essential to plead a fraud claim with specificity. (*Lazar, supra*, 12 Cal.4th at 645; *Tindell, supra*, 22 Cal.App.5th at 1249.)

It is not clear that the latter portion of defendant's alleged misrepresentation is false (i.e., that defendant would transfer the Property to the granddaughter after Plaintiff died, since the operative event has not occurred and Plaintiff has not alleged facts indicating defendant has denied that he would make such a transfer). Nevertheless, Plaintiff also alleges a misrepresentation by defendant that Plaintiff "would be allowed to retain the Property" for his entire life. That the Property title was transferred and the rents collected by defendant allegedly since August 2014 (Compl. ¶ 11), though the grant deed provided by defendant indicates the transfer was executed and recorded in 2017 (Def. RJN Exh. B), supports that this aspect of the alleged misrepresentation was false.

These allegations raise an additional ground for finding the fraud claim is not alleged with sufficient specificity, however, on the element of reasonable reliance. Plaintiff alleges that he relied on defendant's representation that Plaintiff would "retain the Property" for his entire life, but Plaintiff alleges he executed and recorded a deed transferring the Property to defendant allegedly in 2014, after which defendant allegedly collected the Property income (or in 2017 as the recorded grant deed shows). Conveying title to the Property to defendant years ago would seem to undermine Plaintiff's reasonable reliance on a representation Plaintiff would "retain" the Property until his death if he conveyed title to the Property to defendant. (Compl. ¶¶ 11, 20, 21, 23.) Plaintiff alleges he is "hard of hearing and has limited English proficiency," but Plaintiff does not allege that he did not know he was signing a grant deed and conveying title to the Property to defendant or that he did not intend to sign the grant deed. (Compl. ¶ 11.) He does not allege additional facts to state the reasonable reliance element of fraud that despite transferring title to the Property to defendant and defendant's alleged collection of the rents from the Property since 2014, he relied on defendant's representation that Plaintiff nevertheless would "retain" the Property for life.

On these grounds, the Court **sustains** the demurrer to this cause of action, **with leave to amend**.

The Court notes defendant's argument that his parents had the assistance of counsel in recording the document based on the identification of what may be a law firm under the line "recording requested by" on the grant deed. (Def. RJN Exh. B.) The Court cannot take judicial notice of the fact defendant asserts, i.e., that his parents received the advice or assistance of counsel in making the Property

transfer, from that reference in the recorded deed. The fact argued by defendant is beyond the scope of judicial notice, and a factual inference and interpretation of the document that is reasonably disputable. (*StorMedia, supra*, 20 Cal.4th 449, 457, fn. 9; *Linda Vista Village San Diego Homeowners Assn., supra*, 234 Cal.App.4th at 184.)

3. Statute of Limitations

The statute of limitations for fraud is three years, which runs from the date of discovery of the "facts constituting the fraud." (Code Civ. Proc. § 338(d).) Plaintiff contends that under the delayed discovery rule, the fraud cause of action is timely since Plaintiff alleges he did not discover the fraud until November 1, 2024.

"An important exception to the general rule of accrual is the 'discovery rule,' which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action. [Citations.] [¶] A plaintiff has reason to discover a cause of action when he or she 'has reason at least to suspect a factual basis for its elements.' [Citations omitted.]" (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807.) A potential plaintiff "discovers the cause of action when he at least suspects a factual basis, as opposed to a legal theory, for its elements, even if he lacks knowledge thereof—when, simply put, he at least 'suspects . . . that someone has done something wrong' to him [citation], 'wrong' being used, not in any technical sense, but rather in accordance with its 'lay understanding' [citation omitted]." (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 397–398.)

The California Supreme Court in *Fox* explained, "The discovery rule only delays accrual until the plaintiff has, or should have, inquiry notice of the cause of action. The discovery rule does not encourage dilatory tactics because plaintiffs are charged with presumptive knowledge of an injury if they have '[i]nformation of circumstances to put [them] on *inquiry*' [] or if they have '*the opportunity to obtain knowledge* from sources open to [their] investigation.' [Citations, internal quotation marks omitted, italics in original.] In other words, plaintiffs are required to conduct a reasonable investigation after becoming aware of an injury, and are charged with knowledge of the information that would have been revealed by such an investigation." (*Fox, supra*, 35 Cal.4th at 807-808.) (*See also Brandon G. v. Gray* (2003) 111 Cal.App.4th 29, 35 [the date the statute of limitations on fraud starts to run is "the date the complaining party learns, or at least is put on notice, that a representation was false." [Emphasis added.]])

Further, to plead the delayed discovery rule, " '[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.' [Citation omitted.] In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to 'show diligence'; 'conclusory allegations will not withstand demurrer.' [Citation omitted.]" (*Fox, supra*, 35 Cal.4th at 808 [emphasis added].)

Though Plaintiff alleges he did not discover the falsity of defendant's representations until November 1, 2024, the allegations of the complaint show on their face contrary facts that Plaintiff would have had at a minimum inquiry notice of facts indicating he had not "retained" the Property. Plaintiff alleges defendant "brought Plaintiff to the County Recorder's office" where he supposedly signed the deed to the Property to defendant in August 2014 (or 2017), which would have made defendant's representation Plaintiff would retain the Property for the rest of his life false. More important,

Plaintiff alleges defendant, and not Plaintiff, was collecting all the rents and income from the Property since August 2014, a fact clearly inconsistent with Plaintiff's "retaining" the Property for the rest of his life if beginning in August 2014, Plaintiff was no longer collecting and receiving the rents or income from the Property. (Compl. ¶¶ 11, 12.)

Inquiry notice arose, based on Plaintiff's allegations, on August 22, 2014 when defendant allegedly began collecting the rents for his own use and benefit rather than Plaintiff. (Compl. ¶ 11.) On the face of the complaint, the fraud claim would have accrued in August 2014 (or 2017) when Plaintiff alleges he transferred the Property and defendant was collecting and receiving the Property income. If Plaintiff contends that he could not have discovered that defendant had been granted title and was collecting the rents for more than ten years preceding November 1, 2024, then Plaintiff "must specifically plead facts to show . . . [his] inability to have made earlier discovery despite reasonable diligence." (*Fox, supra*, 35 Cal.4th at 808.)

The demurrer to the second cause of action is also **sustained** on the ground of the statute of limitations, **with leave to amend**.

C. The Common Counts (3rd and 4th C/As)

In support of the demurrer to these counts, defendant cites *McBride v. Boughton* (2004) 123 Cal.App.4th 379, in which the Court explains that "[w]hen a common count is used as an alternative way of seeking the same recovery demanded in a specific cause of action, and is based on the same facts, the common count is demurrable if the cause of action is demurrable. [Citations omitted.]" (*Id.* at 394-395.) Plaintiff does not address this decision or the proposition stated in his opposition. The common count claims are founded on the same allegations and facts regarding the alleged Promissory Note stated in the first cause of action, which the Court found deficient. The Court also finds these causes of action deficient for other reasons stated below.

1. Account Stated (3rd C/A)

"The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due. [Citations omitted.]" (*Zinn v. Fred R. Bright Co.* (1969) 271 Cal.App.2d 597, 600 [emphasis added].) (*See also Trafton v. Youngblood* (1968) 69 Cal.2d 17, 25 ["An account stated is an agreement, based on prior transactions between the parties, that all items of the account are true and that the balance struck is due and owing from one party to the other." (Emphasis added.)].) The California Supreme Court explained:

The theory upon which the action on an account stated is allowed is that transactions have occurred between the parties from which the relation of debtor and creditor has arisen, that thereafter one or both have rendered or made statements or declarations specifying definitely the amount due on account thereof and thereupon there has been an agreement, express or implied, by the one who is the debtor, to the other, that a certain sum is due from him on such account, together with an express or implied promise to pay the same. The action is based on the promise to pay thus established,

and if it is not expressly made, facts from which such promise will be implied must be proven.

(*Bennett v. Potter* (1919) 180 Cal. 736, 745 [emphasis added] [account stated cannot become a substitute for an action on a written contract with a promise to pay].)

Plaintiff has not alleged that he submitted periodic account statements or other writings to defendant setting forth a definite amount due and that defendant agreed to the amount owed or failed to object to those statements within a reasonable time so as to create an express or implied agreement to an "account stated" for the amounts subject to this claim. (*Zinn v. Fred R. Bright Co.*, *supra*, 271 Cal.App.2d at 600.) Further, the amount "due," or at least the amount defendant indicated he would pay as financial assistance to Plaintiff as reflected in the 2004 Letter, is not specific or definite but rather "approximate" and subject to potential fluctuations. (Compl. ¶ 9 and Exh. A, incorporated by reference at ¶ 25.) The 2004 Letter refers to defendant making payments monthly in the "approximate" amount of \$1,000 to Plaintiff, and to defendant having received "approximately" \$400,000 as an inheritance. Plaintiff does not allege facts sufficient, in the face of the 2004 Letter attached to the complaint, to state a cause of action for account stated based on an express or implied agreement by defendant to pay Plaintiff \$400,000.

The demurrer to the third cause of action is **sustained, with leave to amend**, on the foregoing grounds. The Court does not sustain the demurrer based on the statute of limitations as the Court cannot determine that a claim for account stated is "clearly and affirmatively" time-barred in all respects. (Code Civ. Proc. § 337(b) [four years].)

2. Open Book Account (4th C/A)

A "book account" is defined in Code of Civil Procedure section 337a as "a detailed statement which constitutes the principal record of one or more transactions between a debtor and a creditor arising out of a contract or some fiduciary relation, and shows the debits and credits in connection therewith, and against whom and in favor of whom entries are made, is entered in the regular course of business as conducted by such creditor or fiduciary, and is kept in a reasonably permanent form and manner and is (1) in a bound book, or (2) on a sheet or sheets fastened in a book or to backing but detachable therefrom, or (3) on a card or cards of a permanent character, or is kept in any other reasonably permanent form and manner." (Code Civ. Proc. § 337a(a).)

The complaint does not allege facts regarding any statement or book maintained reflecting transactions and debits and credits between Plaintiff and defendant on which the open book account cause of action is based. The complaint therefore does not state facts sufficient to state this cause of action, and the general demurrer to this cause of action is **sustained, with leave to amend**. The Court does not sustain the demurrer based on the statute of limitations as the Court cannot determine that a claim for open book account is "clearly and affirmatively" time-barred in all respects. (Code Civ. Proc. § 337(b) [four years].)

Additional Comments on Leave to Amend the Third and Fourth Causes of Action

Plaintiff has asserted two specific common counts, and for the reasons explained, the complaint does not state the facts essential to stating a cause of action for account stated or open book account. The breach of contract cause of action, the facts on which these two causes of action are also founded, is

defective for the reasons stated. If Plaintiff files an amended complaint, Plaintiff may be able to allege facts to state common counts other than account stated and open book account based on the current and additional facts Plaintiff may set forth. Leave to amend as to the common counts shall include leave to amend to allege common counts other than the ones currently pled in the complaint.

Special Demurrers for Uncertainty

Having sustained a general demurrer to each of the four causes of action as stated above, the Court does not reach the special demurrer for uncertainty to those causes of action.

7. 9:00 AM CASE NUMBER: C25-01950

CASE NAME: KENNETH RAI VS. JEFFREY RAI

***HEARING ON MOTION IN RE: STRIKE**

FILED BY: RAI, JEFFREY L.

TENTATIVE RULING:

Before the Court is a motion by defendant Jeffrey Rai to strike portions of plaintiff Kenneth Rai's complaint. For the reasons set forth, the motion is **denied as moot** based on the Court's concurrent ruling on the defendant's demurrer.

8. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**

FILED BY:

TENTATIVE RULING:

The motion to be relieved as counsel for Priscella Percy, brought by Khaldoun Baghdadi of Walkup, Melodia, et al., and Mikal Watts of Watts, LLP, is granted. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.

9. 9:00 AM CASE NUMBER: MSC16-02404

CASE NAME: ACOSTA VS REMINGTON LODGING

***HEARING ON MOTION IN RE: FINAL APPROVAL HEARING SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

Plaintiff Rina Acosta moves for preliminary approval of her class action settlement with defendant Remington Lodging & Hospitality, LLC. Preliminary approval was granted on September 12, 2025. Plaintiff separately moved for attorney's fees, costs and a service award. That motion initially was set by the clerk's office for a hearing on July 9, 2026. In order to hear the two motions together, the Court reset the hearing on the fee motion to February 19, 2026. The two motions will be considered together.

A. Background and Settlement Terms

The original complaint was filed by plaintiff on December 20, 2016, raising class action claims and PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various

ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, and failure to pay all wages due on separation.

On August 5, 2020, the Court granted, in part, plaintiff's motion for class certification, certifying a class of employees with respect to the rest period and derivative final pay allegations, and denying the motion as to other claims. The definition of "class" in the settlement (Par. 1.4), however, includes "all persons who are or previously were employed by Defendant who were classified as non-exempt in the State of California and worked at least one rest-break eligible shift during the Class Period." Counsel have clarified that the class proposed for settlement is not broader than the existing certified class.

The settlement would create a gross settlement fund of \$850,000. The class representative payment to plaintiff would be up to \$12,500. Attorney's fees would be \$283,305 (one-third of the settlement). Litigation costs would not exceed \$145,000 (but were initially estimated at \$135,726). The settlement administrator's costs would not exceed \$9,750. The net amount paid directly to the class members would be about \$408,718. The fund is non-reversionary. Based on the estimated class size of 571, the average net payment for each class member is approximately \$715.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Checks undelivered or uncashed 180 days after mailing will be voided, and would be tendered to the State Controller's unclaimed property fund.

Since preliminary approval, the administrator has given notice to the class. Mailed notice was provided to 568 class members. Five were returned as undeliverable. Based on follow-up, five new addresses were obtained and notice was remailed. No class member requested exclusion. No member submitted a written objection.

The settlement contains release language (See Par. 5.3) covering "any alleged failure to provide compliant rest breaks, or compensation in lieu thereof; and (2) any alleged failure to pay timely wages due upon separation; and (3) Industrial Welfare Commission Wage Order violations referenced in the Operative complaint in relation to the allegations listed above." Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

The released wage claims are limited to those arising from alleged rest break violations.

Informal and formal written discovery was undertaken. The matter settled after arms-length negotiations, which included two sessions with two different experienced mediators.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers (specifically the Boucher declaration), include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees, costs and representative service award

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

In her motion for attorney’s fees, plaintiff submitted a “Notice of Lodging Boucher LLP’s Confidential Time and Lodestar Report in Support of Motion for Final Approval of Class Action Settlement and Attorneys’ Fee, Costs and Service Payment.” The document, however, was filed in the public file. In order to submit a document under seal, a party must comply with California Rule of Court 2.551, which requires that any such document be submitted with an application for an order sealing the record,

which must be accompanied by a redacted version of the document for the public file, and an unredacted version identified as filed conditionally under seal. This was not done, and the document became part of the public file. Moreover, it is not clear that a motion to seal could have been granted under the criteria set forth in CRC 2.550. Fee records are routinely made part of the public court file as part of attorney's fee applications. Moreover, summaries of attorney time are often accepted in lieu of actual timesheets.

Counsel has calculated a lodestar fee amount for purposes of this motion. The final amount is \$794,777, based on a total of 1,723.90 hours, at a blended hourly rate \$461. The imputed multiplier is 0.35. Under these circumstances, no adjustment in the requested fee is required. The fee is reasonable and is approved.

Litigation costs are requested in the amount of \$136,371.82. While they are relatively high for this type of case, the drawn-out and heavily litigated nature of this case resulted in higher costs. They are reasonable and are approved.

The Settlement Administrator's costs of \$9,750 are reasonable and are approved.

The requested representative payment of \$12,500 for plaintiff is reviewed under the criteria discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Ms. Acosta attests to her time spent on this matter, which she estimates at 51 hours. She accepted some risk that her participation would make it harder for her to secure other work. She also signed a general release, which is broader than that of the class as a whole, although she does not identify any other claims of significant value. All things considered, the requested payment of \$12,500 is reasonable and is approved.

D. Conclusion

The Court finds that the settlement is fair, reasonable, and adequate, and grants both the motion for final approval and the motion for attorney's fees.

Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. They are further directed to prepare a judgment reflecting the terms of the settlement. The judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court. The date for the compliance hearing shall be set in consultation with the clerk for Department 39, but shall be held in Department 16. As of March 1, 2026, this case is assigned for all purposes to Department 16, the Honorable Benjamin Reyes.

10. 9:00 AM CASE NUMBER: MSC21-01298
CASE NAME: MARIO R LOPEZ VS. ELECTRIC TECH CONSTRUCTION
***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM**
FILED BY:

TENTATIVE RULING:

Hearing required. Counsel to appear (by zoom is sufficient). The Court has received counsel's late-filed declaration and invites counsel's recommendations on how best to proceed.

11. 9:00 AM CASE NUMBER: MSC21-01668

CASE NAME: ANGELICA CUIEL VS. PRIVIA HEALTH GROUP, INC.

***HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS ACTION AND PAGA CONTINUED FROM 01.29.26 HEARING**

FILED BY:

TENTATIVE RULING:

On January 29, 2026, the Court adopted its tentative ruling approving the settlement (with a reduced amount of attorney's fees), subject to confirmation by a declaration of the settlement administrator indicating whether any objections or requests for exclusion had been received since the January 15, 2026 deadline. A declaration was filed, stating that as of the deadline, no requests for exclusion and no objections are received.

The Court notes that the settlement administrator's declaration refers to deducting \$1,938,000 being deducted from the gross settlement amount. The correct figure to be deducted, based on the Court's ruling, is \$1,530,000. The difference goes to the Net Settlement Amount.

For the reasons stated in the January 29, 2026 ruling, the **motion is granted**. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

12. 9:00 AM CASE NUMBER: MSC21-02363

CASE NAME: HALL VS. AMERICAN AUTOMOBILE ASSOCIATION

***HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS ACTION SETTLEMENT AGREEMENT SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

Plaintiffs Keaton Hall, Michael Myers, Davion Frazier and Kelly McDaniel move for final approval of their class action and PAGA settlement with defendants American Automobile Association of Northern California, Nevada & Utah and A3 Smart Home LP.

A. Background and Settlement Terms

The original complaint was filed by Hall on November 3, 2021, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Myers filed a PAGA complaint on August 16, 2023. On February 6, 2024, Myers amended his complaint to include class action allegations. On October 4, 2023, Frazier filed a similar class action complaint. On December 15, 2023, he filed a PAGA action. On May 19, 2025, the parties stipulated for leave to amend Hall's complaint, and it is now the operative complaint, including all of the claims at issue.

The settlement would create a gross settlement fund of \$5,000,000. The class representative

payment to the plaintiffs would be \$10,000 each. Attorney's fees would be \$1,750,000 (35% of the settlement). Litigation costs would not exceed \$35,000. The settlement administrator's costs would not exceed \$35,500. PAGA penalties would be \$1,000,000. The net amount paid directly to the class members would be about \$2,169,000. The fund is non-reversionary. The average net payment for each class member would be approximately \$450, based on an estimated 4,800 class members. (The figures have now been revised to 5,198 class members (less 18 opt-outs), with an average payment of \$410.)

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendants during the class period.

The class members will not be required to file a claim. Notice will be mailed to all members of the class, who would be given an opportunity to opt out of the settlement or to object. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Checks undelivered or uncashed 180 days after mailing will be voided, and the funds will be forwarded to the California Controller's Unclaimed Property Fund.

Since preliminary approval, notice has been provided to the class. The administrator mailed notice to 5,198 people. 13 notice packets were returned as undeliverable and remain undeliverable. 18 requests for exclusion have been received. No objections have been received.

The settlement contains release language covering "all claims, demands, rights, liabilities, and causes of action that were pled in the Operative Complaint in the Action, or which could have been alleged based on the factual allegations therein[.]" (Settlement, Par. 7.3, 5.2.) Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Informal and formal written discovery was undertaken. The matter settled after arms-length negotiations, including a session with an experienced mediator.

Counsel also has provided an analysis of the case, and how the settlement compares to the potential value of the case, estimating the recovery on the class claims relative to their potential values, breaking down the analysis claim-by-claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory."])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion for preliminary approval.

A. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

B. Attorney fees, costs, administrative costs, and plaintiff incentive award

Plaintiff seeks 35% of the total settlement amount (\$1,750,000), as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) For the final approval process, counsel have prepared a lodestar analysis. They have calculated a lodestar of \$995,828.50, based on total hours of 1,285.5, which results in a blended hourly rate of about \$775. The imputed multiplier is 1.76. Without necessarily endorsing the blended hourly rate, no adjustment to the fee is necessary. The fees are reasonable and are approved.

Litigation costs of \$45,421.55 are reasonable and are approved.

Administrator's fees of \$35,000 are reasonable and are approved.

The requested representative payment of \$10,000 for each plaintiff is reviewed under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Each plaintiff has filed a declaration attesting to their role in the case. They each attest that they took some risk of having their role as a plaintiff hurt future employment opportunities. Each signed a general release, although none indicate that they had any other claims of substantial value. Each attest to the number of hours they spent on the matter. (Frazier 50 hours, McDaniel 25 hours, Myers 35 hours, Hall 40-45 hours.) Considering the relevant criteria, including the size of the overall recovery, the request for \$10,000 each is approved.

C. Conclusion

The Court finds that the proposed settlement is fair, reasonable, and adequate and **grants the motion for approval**. Counsel are directed to prepare an order reflecting this tentative ruling, as well as the other findings in the proposed order. They also are directed to prepare a judgment. The judgment must provide for a compliance hearing after the settlement has been completely implemented. It also should identify the 18 individuals who requested exclusion, so that if they ever bring an action, it is not difficult for them to establish that they are not bound by the settlement. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court. The compliance shall be determined in consultation with the Department 39 clerk, but shall be set for hearing in Department 16. As of March 1, 2026, this matter is assigned for all purposes to Department 16, the Honorable Benjamin Reyes.

Courtroom Clerk's Calendar

13. 10:00 AM CASE NUMBER: MS25-0288
CASE NAME: CLAYTON GARDENS VS. NATHAN PARSONS
HEARING ON SUMMARY MOTION
FILED BY:

TENTATIVE RULING:

Appearances required. Pursuant to CRC 3.1351, opposition and reply may be given orally at the hearing. (The Court has received and reviewed plaintiff's opposition.) Accordingly, no tentative ruling will be issued.

Law & Motion
Add On

14. 9:00 AM CASE NUMBER: MSC16-02404
CASE NAME: ACOSTA VS REMINGTON LODGING
***HEARING ON MOTION IN RE: ATTORNEYS' FEES, COSTS AND SERVICE PAYMENT**
FILED BY: ACOSTA, RINA
TENTATIVE RULING:

See Line 9.

15. 9:00 AM CASE NUMBER: MSC21-02036
CASE NAME: PEOPLE OF CA VS. CORTEVA INC
***HEARING ON MOTION IN RE: COMPEL DEFENDANTS RESPONSES AND PRODUCE DOCUMENTS**
(CONTINUED FROM: 02.05.2026)
FILED BY:
TENTATIVE RULING:

Off calendar, at the request of all parties.